IN THE HIGH COURT OF ORISSA AT CUTTACK

JCRLA No.34 of 2026
CNR- ODHC010052372026

Deepak Dalai @ Sadananda .... ***Appellant/ Petitioner***

Represented by Adv.-

-versus-

State of Odisha .... ***Respondent/ Opp. Party***

Represented by Adv.-
Mr. R.B. Dash, ASC

CORAM:
HON'BLE MR. JUSTICE SIBO SANKAR MISHRA

ORDER
07.08.2026
(Hybrid mode)

Order No.

01. **1.** This Jail Criminal Appeal has been received from the jail with a delay of 153 days. The appellant has been convicted on the charges of commission of the offences under Sections 377/511/506 of IPC r/w Section 8 of the POCSO Act by the learned Adhoc Additional District & Sessions Judge (FTSC), Jajpur in C.T. Special (POCSO) Case No.148 of 2020 and on that count, sentenced him to undergo R.I. for five years and to pay a fine of Rs.5,000/- (Rupees five thousand), in default, to undergo S.I. for one year for the offence U/Ss. 377/511 of IPC. R.I. for three years U/S. 506 of IPC. R.I. for three yeasr and to pay a fine of Rs.3,000/- (Rupees three thousand), in default, to

undergo S.I. for six months for the offence U/S. 8 of the POCSO Act.

2. The delay of 153 days in filing the Jail Criminal Appeal stands condoned.

3. Admit.

4. Call for the trial Court records.

5. Since this is a case involving the POCSO Act besides other offences, learned counsel for the State shall serve a copy of the notice of this appeal memo on the informant/victim of the case in Jajpur Sadar P.S. Case No.265/2020 and he/she shall be intimated that the appellant has moved an application for bail and he/she can engage a counsel to oppose the prayer for bail and if, he/she is financially unsound to engage any counsel, the High Court Legal Services Authority would engage counsel for such purpose and, if he/she agrees to that, Vakalatnama shall be collected.

6. This Court appoints Ms. Gayatri Das, Advocate, Mobile No.9776051466 to conduct the case on behalf of the appellant as Amicus Curiae.

7. The Registry is directed to contact and supply copies of the appeal memos to Ms. Gayatri Das, learned Amicus Curiae and to reflect her name in the cause list. Learned Amicus Curiae may move bail application on behalf of the appellant.

8. List this appeal along with the bail application, if any, immediately after the TCR is received.

(Sibo Sankar Mishra)
Judge

Subhasis

Signature Not Verified
Digitally Signed
Signed by: SUBHASIS MOHANTY
Designation: Personal Assistant
Reason: Authentication
Location: High Court of Orissa, Cuttack.
Date: 11-Aug-2026 17:11:32